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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:16-cv-00447-PAB-KLM

Nosewicz v. Janosco

Assigned to: Judge Philip A. Brimmer

Referred to: Magistrate Judge Kristen L. Mix

Case in other court: U.S. Court of Appeals, 10th Circuit, 18-01139

U.S. Courts of Appeals, 10th Cir., 20-01287

Cause: 42:1983 Civil Rights Act

Date Filed: 02/24/2016

Date Terminated: 10/10/2019

Jury Demand: Both

Nature of Suit: 440 Civil Rights: Other

Jurisdiction: Federal Question

Plaintiff**Edward John Nosewicz**represented by **John L. Springer**

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V.

Defendant**J. Janosco***Deputy**TERMINATED: 05/04/2016*represented by **J. Andrew Nathan**

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Defendant

Jeffrey Janosko

represented by **J. Andrew Nathan**
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Nicholas Christaan Poppe
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Date Filed	#	Docket Text
02/24/2016	<u>1</u>	COMPLAINT against Deputy J. Janosko (Filing fee \$ 400,Receipt Number 1082-4845491)Attorney Brice A. Tondre added to party Edward John Nosewicz(pty:pla), filed by Edward John Nosewicz. (Attachments: # <u>1</u> Civil Cover Sheet)(Tondre, Brice) (Entered: 02/24/2016)
02/24/2016	2	Case assigned to Judge Philip A. Brimmer and drawn to Magistrate Judge Kristen L. Mix. Text Only Entry (dbera,) (Entered: 02/24/2016)
02/24/2016	<u>3</u>	Magistrate Judge consent form issued pursuant to 28 U.S.C. 636(c). (dbera,) (Entered: 02/24/2016)

02/25/2016	4	SUMMONS REQUEST as to Deputy J.Janosco by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 02/25/2016)
02/25/2016	5	Administrative Notice: Summons submitted 4 is incomplete and will not be issued. Please complete the form for issuance using the Summons Request (Text Only Entry) (jhawk,) (Entered: 02/26/2016)
02/26/2016	6	SUMMONS REQUEST by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 02/26/2016)
02/26/2016	7	SUMMONS issued by Clerk. (jhawk,) (Entered: 02/26/2016)
02/26/2016	8	ORDER REFERRING CASE to Magistrate Judge Kristen L. Mix for non-dispositive matters. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, and (4) conduct a pretrial conference and enter a pretrial order. Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, this court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. By Judge Philip A. Brimmer on 2/26/16. Text Only Entry (pabsec) (Entered: 02/26/2016)
03/01/2016	9	ORDER SETTING SCHEDULING/PLANNING CONFERENCE by Magistrate Judge Kristen L. Mix on 3/1/16. Scheduling Conference set for 6/23/2016 11:00 AM in Courtroom A401 before Magistrate Judge Kristen L. Mix. (Attachments: # 1 Attachment 1, # 2 Attachment 2, # 3 Attachment 3) (lgale,) (Entered: 03/01/2016)
05/04/2016	10	AMENDED COMPLAINT against Jeffrey Janosko, filed by Edward John Nosewicz. (Tondre, Brice) (Entered: 05/04/2016)
05/05/2016	11	SUMMONS REQUEST as to Jeffrey Janosko by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 05/05/2016)
05/05/2016	12	Administrative Notice: Administrative Notice: Summons submitted in document 11 are incomplete and will not be issued. Complete the form for issuance using the event Summons Request (jhawk,) (Entered: 05/05/2016)
05/06/2016	13	SUMMONS REQUEST as to Jeffery Janosko by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 05/06/2016)
05/06/2016	14	SUMMONS issued by Clerk. (jhawk,) (Entered: 05/06/2016)
05/20/2016	15	WAIVER OF SERVICE Returned Executed by Jeffrey Janosko. Jeffrey Janosko waiver sent on 5/16/2016, answer due 7/15/2016. (DeMarco, Julianne) (Entered: 05/20/2016)
05/31/2016	16	NOTICE of Entry of Appearance by J. Andrew Nathan on behalf of All Defendants Attorney J. Andrew Nathan added to party J. Janosco(pty:dft), Attorney J. Andrew Nathan added to party Jeffrey Janosko(pty:dft) (Nathan, J.) (Entered: 05/31/2016)
05/31/2016	17	NOTICE of Entry of Appearance by Marni Nathan Kloster on behalf of All Defendants Attorney Marni Nathan Kloster added to party J. Janosco(pty:dft), Attorney Marni Nathan Kloster added to party Jeffrey Janosko(pty:dft) (Kloster, Marni) (Entered: 05/31/2016)

05/31/2016	18	NOTICE of Entry of Appearance by Nicholas Christaan Poppe on behalf of All Defendants Attorney Nicholas Christaan Poppe added to party J. Janosco(pty:dft), Attorney Nicholas Christaan Poppe added to party Jeffrey Janosko(pty:dft) (Poppe, Nicholas) (Entered: 05/31/2016)
06/14/2016	19	MINUTE ORDER. PLEASE NOTE TIME CHANGE ONLY. This matter is before the Court sua sponte. Due to a conflict on the Court calendar, IT IS HEREBY ORDERED that the Scheduling Conference set for June 23, 2016 at 11:00 a.m. is VACATED and RESET to June 23, 2016 at 10:00 a.m. in Courtroom A-401, Fourth Floor, Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado. by Magistrate Judge Kristen L. Mix on 6/14/2016. Text Only Entry (klmlc1,) (Entered: 06/14/2016)
06/14/2016	20	Utility Setting/Resetting Deadlines/Hearings: Scheduling Conference set for 6/23/2016 10:00 AM in Courtroom A 401 before Magistrate Judge Kristen L. Mix. Text Only Entry (morti,) (Entered: 06/14/2016)
06/16/2016	21	Proposed Scheduling Order by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 06/16/2016)
06/23/2016	22	MINUTE ENTRY for Scheduling Conference held before Magistrate Judge Kristen L. Mix on 6/23/2016. Discovery due by 2/23/2017. Dispositive Motions due by 3/27/2017. Status Report due by 1/31/2017. Final Pretrial Conference set for 6/22/2017 10:00 AM in Courtroom A401 before Magistrate Judge Kristen L. Mix. FTR: KLM Courtroom A401. (Attachments: # 1 Discovery Procedures and Requirements of Practice) (lgale,) (Entered: 06/23/2016)
06/23/2016	23	SCHEDULING ORDER: by Magistrate Judge Kristen L. Mix on 6/23/16. (lgale,) (Entered: 06/23/2016)
07/05/2016	24	ANSWER to 10 Amended Complaint by Jeffrey Janosko.(Kloster, Marni) (Entered: 07/05/2016)
07/19/2016	25	STIPULATION ORDER by Defendant Jeffrey Janosko. (Kloster, Marni) (Entered: 07/19/2016)
07/26/2016	26	Stipulated Order, by Magistrate Judge Kristen L. Mix on 7/26/16. (morti,) (Entered: 07/27/2016)
08/11/2016	27	Joint MOTION for Protective Order <i>Stipulated</i> by Defendant Jeffrey Janosko. (Attachments: # 1 Stipulated Protective Order)(Poppe, Nicholas) (Entered: 08/11/2016)
08/11/2016	28	MEMORANDUM regarding 27 Joint MOTION for Protective Order <i>Stipulated</i> filed by Jeffrey Janosko. Motion referred to Magistrate Judge Kristen L. Mix by Judge Philip A. Brimmer on 8/11/16. Text Only Entry (pabsec) (Entered: 08/11/2016)
08/22/2016	29	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 8/22/16. 27 Stipulated Motion for Entry of Protective Order as an Order of the Court is GRANTED. (lgale,) (Entered: 08/22/2016)
08/22/2016	30	STIPULATED PROTECTIVE ORDER by Magistrate Judge Kristen L. Mix on 8/22/16. (lgale,) (Entered: 08/22/2016)
12/16/2016	31	Joint MOTION to Amend/Correct/Modify 23 Scheduling Order by Defendant Jeffrey Janosko. (Attachments: # 1 Proposed Order (PDF Only))(Kloster, Marni) (Entered: 12/16/2016)
12/16/2016	32	MEMORANDUM regarding 31 Joint MOTION to Amend/Correct/Modify 23 Scheduling Order filed by Jeffrey Janosko. Motion referred to Magistrate Judge Kristen L. Mix by Judge Philip A. Brimmer on 12/16/16. Text Only Entry (pabsec) (Entered: 12/16/2016)

12/16/2016	33	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 12/16/16. Joint Motion to Amend Scheduling Order 31 is GRANTED. Discovery due by 3/17/2017. Dispositive Motions due by 4/17/2017. (lgale,) (Entered: 12/16/2016)
02/06/2017	34	Stipulated STATUS REPORT by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 02/06/2017)
02/28/2017	35	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 2/28/17. It is HEREBY ORDERED that the discovery hearing set for March 1, 2017 at 11:00 a.m. is VACATED. Any party who wishes to address the issues identified shall do so by filing a timely written motion. (Attachments: # 1 Exhibit A) (lgale,) (Entered: 02/28/2017)
03/03/2017	36	MOTION to Strike <i>PLAINTIFFS NON-RETAINED EXPERT DISCLOSURES</i> by Defendant Jeffrey Janosko. (Attachments: # 1 A, # 2 B, # 3 C, # 4 D, # 5 E, # 6 F, # 7 G) (Poppe, Nicholas) Modified on 2/8/2019 to reinstate motion pursuant to #93 Minute Order. (sphil,). (Entered: 03/03/2017)
03/06/2017	37	MEMORANDUM regarding 36 MOTION to Strike <i>PLAINTIFFS NON-RETAINED EXPERT DISCLOSURES</i> filed by Jeffrey Janosko. Motion referred to Magistrate Judge Kristen L. Mix by Judge Philip A. Brimmer on 3/6/17. Text Only Entry (pabsec) (Entered: 03/06/2017)
03/24/2017	38	RESPONSE to 36 MOTION to Strike <i>PLAINTIFFS NON-RETAINED EXPERT DISCLOSURES</i> filed by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Tondre, Brice) (Entered: 03/24/2017)
03/29/2017	39	MOTION for Summary Judgment by Defendant Jeffrey Janosko. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L, # 13 Exhibit M, # 14 Exhibit N, # 15 Exhibit O, # 16 Exhibit P)(Kloster, Marni) (Entered: 03/29/2017)
03/29/2017	40	Conventionally Submitted Material : Exhibit I, One Disk, to MOTION for Summary Judgment 39 by Defendant Jeffrey Janosko. Located in the Clerks Office. Text Only Entry (jhawk,) (Entered: 03/30/2017)
04/06/2017	41	BRIEF in Support of 36 MOTION to Strike <i>PLAINTIFFS NON-RETAINED EXPERT DISCLOSURES</i> filed by Defendant Jeffrey Janosko. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Kloster, Marni) (Entered: 04/06/2017)
04/17/2017	42	STRICKEN MOTION for Summary Judgment <i>on Issue of Liability</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3)(Tondre, Brice) Modified on 4/18/2017 stricken pursuant to the minute order of 04/18/17 (jhawk,). (Entered: 04/17/2017)
04/18/2017	43	MINUTE ORDER STRIKING 42 Motion for Summary Judgment on Issue of Liability filed by Edward John Nosewicz, for failure to include a section entitled "Statement of Undisputed Material Facts," in compliance with § III.F.3.b.i of this Court's Practice Standards. The motion also fails to comply with III.F.3.a: "Motions and response briefs shall not exceed twenty pages." Plaintiff is granted leave to refile a complying motion and to include any supplemental materials no later than Friday, April 21, 2017. By Judge Philip A. Brimmer on 4/18/17. Text Only Entry (pabsec) (Entered: 04/18/2017)
04/19/2017	44	Response to 39 MOTION for Summary Judgment filed by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4, # 5 Exhibit 5, # 6 Exhibit 6, # 7 Exhibit 7, # 8 Exhibit 8, # 9 Exhibit 9, # 10 Exhibit 10) (Tondre, Brice) Modified on 4/20/2017 to correct title text (jhawk,). (Entered: 04/19/2017)

04/21/2017	45	MOTION for Partial Summary Judgment by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 04/21/2017)
05/03/2017	46	BRIEF in Support of 39 MOTION for Summary Judgment filed by Defendant Jeffrey Janosko. (Kloster, Marni) (Entered: 05/03/2017)
05/03/2017	47	MOTION to Strike Affidavits of Plaintiff re 44 Reply to Response to Motion, by Defendant Jeffrey Janosko. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F)(Kloster, Marni) (Modified on 5/4/2017 edited the title of the text to reflect the title of the document filed)(evana,). (Entered: 05/03/2017)
05/04/2017	48	NOTICE of Conventional Filing of Exhibit No 9 to Plaintiff's 44 Memorandum in Opposition to Defendant's 39 Motion for Summary Judgment, by Plaintiff Edward John Nosewicz (evana,) (Entered: 05/05/2017)
05/04/2017	49	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 48 Notice filed by attorney Brice A. Tondre. The document was not filed electronically. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.1(a) of the Electronic Case Filing Procedures (Civil cases). ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 48 Notice filed by attorney Brice A. Tondre. Attorney has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). DO NOT REFILE THE DOCUMENT. In the future, the filer must affix an electronic s/signature and s/ followed by a typed, not an inked, signature to all future documents.(Text Only Entry) (evana,) (Entered: 05/05/2017)
05/04/2017	50	Conventionally Submitted Material : Exhibit 9 (1 CD Video recording) to Reply to Response to Motion, 44 re: 48 Notice of Conventional Filing, by Plaintiff Edward John Nosewicz Text Only Entry (evana,) Returned to the Clerks Office. Location of stored items: oversized area A-2-2. Modified on 10/9/2020 (jtorr,). (Entered: 05/05/2017)
05/11/2017	51	RESPONSE to 45 MOTION for Partial Summary Judgment <i>ON ISSUE OF LIABILITY</i> filed by Defendant Jeffrey Janosko. (Attachments: # 1 A, # 2 B, # 3 C, # 4 D, # 5 E, # 6 F, # 7 G, # 8 H)(Kloster, Marni) (Entered: 05/11/2017)
05/24/2017	52	RESPONSE to 47 MOTION to Strike 44 Reply to Response to Motion, and 42 Motion for Partial Summary Judgment filed by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit 11, # 2 Exhibit 12)(Tondre, Brice) (Entered: 05/24/2017)
05/24/2017	53	REPLY to Response to 45 MOTION for Partial Summary Judgment filed by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit 1)(Tondre, Brice) (Entered: 05/24/2017)
06/07/2017	54	BRIEF in Support of 47 MOTION to Strike 44 Reply to Response to Motion, filed by Defendant Jeffrey Janosko. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C) (Poppe, Nicholas) (Entered: 06/07/2017)
06/13/2017	55	Unopposed MOTION to Continue <i>Pretrial Conference</i> by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 06/13/2017)
06/13/2017	56	MEMORANDUM regarding 55 Unopposed MOTION to Continue <i>Pretrial Conference</i> filed by Edward John Nosewicz. Motion referred to Magistrate Judge Kristen L. Mix by Judge Philip A. Brimmer on 6/13/17. Text Only Entry (pabsec) (Entered: 06/13/2017)
06/13/2017	57	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 6/13/17. Motion to Reschedule Pretrial Conference 55 is GRANTED. IT IS FURTHER ORDERED that the Final Pretrial Conference set for June 22, 2017, at 10:00 a.m. is VACATED and RESET to July 25,

		2017, at 11:00 AM in Courtroom A401 before Magistrate Judge Kristen L. Mix. Proposed Pretrial Order due by 7/18/2017. (lgale,) (Entered: 06/14/2017)
07/19/2017	58	Proposed Pretrial Order by Defendant Jeffrey Janosko. (Attachments: # 1 Defendant's Exhibit List)(Kloster, Marni) (Entered: 07/19/2017)
07/25/2017	59	FINAL PRETRIAL ORDER by Magistrate Judge Kristen L. Mix on 7/25/17. (rkeec) (Entered: 07/25/2017)
07/25/2017	60	MINUTE ENTRY for proceedings held before Magistrate Judge Kristen L. Mix: Final Pretrial Conference held on 7/25/2017. Plaintiff shall submit supplemental witness and exhibits lists, in accordance with the directions of the Court, on or before Tuesday, August 1, 2017. FTR: Courtroom A-401. (rkeec) (Entered: 07/25/2017)
07/26/2017	61	MINUTE ORDER authorizing Magistrate Judge Kristen L. Mix to conduct a settlement conference in this case by Judge Philip A. Brimmer on 7/26/17. (dkals,) (Entered: 07/26/2017)
08/01/2017	62	MOTION for Extension of Time to <i>Provide Identification of Certain Exhibits</i> by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 08/01/2017)
08/01/2017	63	SUPPLEMENT/AMENDMENT to 59 Pretrial Order by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 08/01/2017)
08/02/2017	64	MEMORANDUM regarding 62 MOTION for Extension of Time to <i>Provide Identification of Certain Exhibits</i> filed by Edward John Nosewicz. Motion referred to Magistrate Judge Kristen L. Mix by Judge Philip A. Brimmer on 8/2/17. Text Only Entry (pabsec) (Entered: 08/02/2017)
08/07/2017	65	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 8/7/17 GRANTING 62 Motion for Extension to Provide Identification of Certain Exhibits. Plaintiff shall provide identification of the jail surveillance videos listed as Plaintiffs Exhibits on or before August 8, 2017. (nmarb,) (Entered: 08/07/2017)
08/07/2017	66	MINUTE ORDER setting Settlement Conference for 9/18/2017 01:30 PM in Courtroom A 401 before Magistrate Judge Kristen L. Mix, by Magistrate Judge Kristen L. Mix on 8/7/2017. (Attachments: # 1 Continuation of Main Document) (jgonz,) (Entered: 08/08/2017)
08/08/2017	67	Exhibit List <i>Identification of Certain Exhibits Listed in Plaintiff's Supplement to Final Pretrial Order [ECF-63]</i> by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 08/08/2017)
09/18/2017	68	MINUTE ENTRY for Settlement Conference held before Magistrate Judge Kristen L. Mix on 9/18/2017. (lgale,) (Entered: 09/19/2017)
10/18/2017	69	MINUTE ORDER. Counsel shall jointly contact Chambers via conference call (303-335-2794) no later than October 25, 2017 to schedule a trial. By Judge Philip A. Brimmer on 10/18/17. Text Only Entry (pabsec) (Entered: 10/18/2017)
10/20/2017	70	ORDER Setting Case for Trial by Judge Philip A. Brimmer on 10/20/2017. Five-day Jury Trial set for 5/7/2018 08:00 AM in Courtroom A 701 before Judge Philip A. Brimmer. Trial Preparation Conference set for 4/13/2018 at 01:30 PM in Courtroom A 701 before Judge Philip A. Brimmer. All motions to exclude expert testimony must be filed sixty days before the trial preparation conference. Fourteen days before the trial preparation conference, counsel and any pro se party shall submit proposed jury instructions and verdict forms. The parties shall submit their instructions and verdict forms both via CM/ECF and by electronic mail to brimmer_chambers@cod.uscourts.gov in Word Perfect format (Word Perfect 12 or a later version) or Word format. Seven days before the

		trial preparation conference, the parties shall file via CM/ECF (1) their proposed voir dire questions; (2) their witness lists; and (3) their exhibit lists. Two days after witness lists are filed, the parties shall file estimates of time required for their cross-examination of the opposing parties witnesses. (sphil,) (Entered: 10/23/2017)
02/12/2018	71	MOTION to Exclude <i>702 Motion Challenging Dan Montgomery</i> by Defendants J. Janosco, Jeffrey Janosko. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D)(Kloster, Marni) Modified on 2/8/2019 to reinstate motion pursuant to #93 Minute Order. (sphil,). (Entered: 02/12/2018)
03/05/2018	72	Unopposed MOTION for Extension of Time to <i>Respond to Defendant's 702 Motion Challenging Dan Montgomery</i> by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 03/05/2018)
03/05/2018	74	ORDER. Defendant's Motion and Brief in Support of Summary Judgment 39 is GRANTED. Plaintiff's Motion for Summary Judgment on Issue of Liability 45 is DENIED. Defendant's Motion to Strike Affidavits of Plaintiff [ECF 44-1 & 42-1], Stephanie Chiu [ECF 44-6 & 42-2], and Tavi Wolf [ECF 44-2 & 42-3] 47 is DENIED as moot. Within 14 days of the entry of this Order, defendant may have his costs by filing a Bill of Costs with the Clerk of the Court. This case is closed, by Judge Philip A. Brimmer on 3/5/18. (sgrim) (Entered: 03/08/2018)
03/07/2018	73	RESPONSE to 71 MOTION to Exclude <i>702 Motion Challenging Dan Montgomery</i> filed by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 03/07/2018)
03/09/2018	75	FINAL JUDGMENT re: 74 Order by Clerk on 3/9/18. (sgrim) Modified on 3/9/2018 to correct typo. (sgrim) (Entered: 03/09/2018)
03/22/2018	76	Proposed Bill of Costs by Defendants J. Janosco, Jeffrey Janosko. (Poppe, Nicholas) (Entered: 03/22/2018)
04/02/2018	77	STIPULATION of Parties as to Proposed Bill of Costs by Defendants J. Janosco, Jeffrey Janosko. (Poppe, Nicholas) (Entered: 04/02/2018)
04/03/2018	78	Costs Taxed by Clerk in the amount of \$8,962.38 against Plaintiff Edward Nosewicz and in favor of Defendant Jeffery Janosko. Costs hearing date of April 3, 2018 vacated. (adodd) (Entered: 04/03/2018) (Entered: 04/03/2018)
04/08/2018	79	NOTICE OF APPEAL as to 75 Clerk's Judgment by Plaintiff Edward John Nosewicz (Filing fee \$ 505, Receipt Number 1082-6039907) (Tondre, Brice) (Entered: 04/08/2018)
04/09/2018	80	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 79 Notice of Appeal filed by Edward John Nosewicz to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Preliminary Record, # 2 Docket Sheet) (sphil,) (Entered: 04/09/2018)
04/09/2018	81	USCA Case Number 18-1139 for 79 Notice of Appeal filed by Edward John Nosewicz. (sphil,) (Entered: 04/10/2018)
04/17/2018	82	Unopposed MOTION for Costs for Clerk to Hold Certified Funds as Security for Taxed Costs by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 04/17/2018)
04/20/2018	83	TRANSCRIPT ORDER FORM re 79 Notice of Appeal by Plaintiff Edward John Nosewicz (Springer, John) (Entered: 04/20/2018)
04/20/2018	84	LETTER TO USCA and all counsel certifying the record is complete as to 79 Notice of Appeal filed by Edward John Nosewicz. A transcript order form was filed stating that a transcript is not necessary. (Appeal No. 18-1139). Text Only Entry. (sphil,) (Entered: 04/23/2018)

08/14/2018	85	MINUTE ORDER by Judge Philip A. Brimmer on 08/14/2018, re: 82 Plaintiff's Unopposed Motion for Clerk to Hold Certified Funds as Security for Taxed Costs is GRANTED. ORDERED that, pursuant to D.C.COLO.LCivR 67.2, the Clerk of Court shall accept for deposit into the court registry the amount of \$8,962.38 and hold the same for distribution upon the United States Court of Appeals for the Tenth Circuit issuing a mandate in Appeal No. 18-1139. (sphil,) (Entered: 08/14/2018)
08/15/2018	87	RECEIPT for \$8,962.38, receipt no. COX086282, by Plaintiff Edward John Nosewicz re: 85 Order on Motion for Costs. (sphil,) (Entered: 11/01/2018)
10/30/2018	86	USCA Order and Judgment as to 79 Notice of Appeal filed by Edward John Nosewicz : (USCA Case No. 18-1139) (This document is not the Mandate). We AFFIRM the summary judgment entered in favor of Janosko on Nosewicz's Fourteenth Amendment deliberate indifference claim. We REVERSE the summary judgment entered in favor of Janosko on Nosewicz's Fourth Amendment excessive force claim and REMAND for further proceedings consistent with this decision. (sphil,) (Entered: 10/30/2018)
12/04/2018	88	MANDATE of USCA as to 79 Notice of Appeal filed by Edward John Nosewicz, 86 USCA Order/Opinion/Judgment, : (USCA Case No. 18-1139). (sphil,) (Entered: 12/04/2018)
12/13/2018	89	MINUTE ORDER by Judge Philip A. Brimmer on 12/13/2018. Pursuant to the Order of the United States Court of Appeals for the Tenth Circuit 86 and the mandate which issued on December 4, 2018 88 , it is ORDERED that, on or before December 19, 2018 , the parties shall file a list of what motions each needs to file or re-file, what deadlines or hearings should be set, and how long the trial is expected to last. (sphil,) (Entered: 12/13/2018)
12/19/2018	90	STATUS REPORT <i>Pursuant to ECF 89</i> by Defendant Jeffrey Janosko. (Poppe, Nicholas) (Entered: 12/19/2018)
12/31/2018	91	STATUS REPORT by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 12/31/2018)
02/04/2019	92	ORDER Setting Case for Trial by Judge Philip A. Brimmer on 2/4/2019. A five-day Jury Trial set for 6/10/2019 08:00 AM in Courtroom A 701 before Judge Philip A. Brimmer. Trial Preparation Conference set for 5/24/2019 at 01:30 PM in Courtroom A 701 before Judge Philip A. Brimmer. All motions to exclude expert testimony must be filed sixty days before the trial preparation conference. Fourteen days before the trial preparation conference, counsel and any pro se party shall submit proposed jury instructions and verdict forms. Seven days before the trial preparation conference, the parties shall file via CM/ECF (1) their proposed voir dire questions; (2) their witness lists; and (3) their exhibit lists. (sphil,) (Entered: 02/05/2019)
02/05/2019	93	MINUTE ORDER. The Clerk of the Court shall reinstate Defendant's Motion to Strike Plaintiff's Non-Retained Expert Disclosures 36 and Defendant's 702 Motion Challenging Dan Montgomery 71 . Any reply in support of Defendant's 702 Motion Challenging Dan Montgomery 71 shall be filed on or before February 19, 2019. By Judge Philip A. Brimmer on 2/5/19. Text Only Entry (pabsec) (Entered: 02/05/2019)
02/07/2019	94	Unopposed MOTION to Reset <i>The Trial Date</i> by Defendant Jeffrey Janosko. (Kloster, Marni) (Entered: 02/07/2019)

02/08/2019	95	MINUTE ORDER granting 94 Motion to Reset the Trial Date. The trial set for June 10, 2019 and the trial preparation conference set for May 24, 2019 are VACATED. Counsel shall jointly contact Chambers via conference call (303-335-2794) no later than February 13, 2019 to reschedule the trial and trial preparation conference dates. by Judge Philip A. Brimmer on 2/8/19. Text Only Entry (pabsec) (Entered: 02/08/2019)
02/12/2019	96	MINUTE ORDER. The five-day jury trial is reset for October 7, 2019 at 8:00 a.m., and the trial preparation conference is reset for September 20, 2019 at 1:30 p.m., both in Courtroom A 701 before Judge Philip A. Brimmer. Please refer to the original Order Setting Case for Trial 92 for additional information and pretrial deadlines. By Judge Philip A. Brimmer on 2/12/19. Text Only Entry (pabsec) (Entered: 02/12/2019)
02/14/2019	97	REPLY to Response to 71 MOTION to Exclude <i>702 Motion Challenging Dan Montgomery</i> filed by Defendant Jeffrey Janosko. (Poppe, Nicholas) (Entered: 02/14/2019)
03/27/2019	98	ORDER by Magistrate Judge Kristen L. Mix on 03/27/19 GRANTING in part and DENYING without prejudice, in part 36 Defendant's Motion to Strike Plaintiff's Non-Retained Expert Disclosures. (nmarb,) (Entered: 03/28/2019)
03/31/2019	99	ORDER. Defendant's 702 Motion Challenging Dan Montgomery 71 is GRANTED in part and DENIED in part. By Chief Judge Philip A. Brimmer on 3/31/19. (pabsec) (Entered: 03/31/2019)
04/18/2019	100	MOTION to Strike <i>Portions to Dr. Englestad's Expert Disclosure</i> by Defendants J. Janosco, Jeffrey Janosko. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B) (Kloster, Marni) (Entered: 04/18/2019)
04/18/2019	101	MEMORANDUM regarding 100 MOTION to Strike <i>Portions to Dr. Englestad's Expert Disclosure</i> filed by J. Janosco, Jeffrey Janosko. Motion referred to Magistrate Judge Kristen L. Mix by Chief Judge Philip A. Brimmer on 4/18/19. Text Only Entry (pabsec) (Entered: 04/18/2019)
05/13/2019	102	Unopposed MOTION for Release of Funds <i>Held as Security for Taxed Costs</i> by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 05/13/2019)
05/22/2019	103	ORDER by Chief Judge Philip A. Brimmer on 5/22/2019, re: 102 Plaintiff's Unopposed Motion for Distribution of Funds Held as Security for Taxed Costs is GRANTED. ORDERED that the Clerk of Court shall distribute the funds held in the Court Registry in this case, plus interest accrued, less the registry fee assessment, by a check made payable to plaintiff Edward John Nosewicz and mailed to: John L. Springer, 15394 E. Monmouth Pl., Aurora, CO 80015-1721. (sphil,) (Entered: 05/23/2019)
08/19/2019	104	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE by Magistrate Judge Kristen L. Mix on 08/19/19 re 100 MOTION to Strike <i>Portions to Dr. Englestad's Expert Disclosure</i> filed by J. Janosco, Jeffrey Janosko. It is RECOMMENDED that the motion 200 be granted and that the Court EXCLUDE the testimony of Dr. Mark Engelstad, identified in subparagraphs (b) through (e) of Plaintiffs Expert Witness Disclosures [#100-1], pursuant to Rule 37(c)(1). (nmarb,) (Entered: 08/20/2019)
08/27/2019	105	NOTICE of <i>Substitution of Counsel</i> by Plaintiff Edward John Nosewicz (McDermott, Sean) (Entered: 08/27/2019)
08/27/2019	106	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 105 Notice (Other) filed by attorney Sean McDermott. The document is filed incorrectly. Action to take - REFILE THE DOCUMENT . In order for an attorney to be withdrawn as counsel of record, a Motion to Withdraw as Attorney must be filed. An attorney cannot be withdrawn by a Notice of Withdrawal of Attorney and/or

		Substitution of Counsel. Refer to D.C.COLO.LAttyR 5(a). (Text Only Entry). (sphil,) Modified on 8/27/2019 (sphil,). (Entered: 08/27/2019)
08/27/2019	107	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 105 Notice (Other) filed by attorney Sean McDermott .The document was scanned and not converted directly to portable document format (PDF). DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 1.3(f) of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry.) (sphil,) (Entered: 08/27/2019)
08/27/2019	108	MOTION for Order to , MOTION to Withdraw as Attorney by Plaintiff Edward John Nosewicz. (Tondre, Brice) (Entered: 08/27/2019)
08/28/2019	109	MEMORANDUM regarding 108 MOTION to Withdraw as Attorney filed by Edward John Nosewicz. Motion referred to Magistrate Judge Kristen L. Mix by Chief Judge Philip A. Brimmer on 8/28/19. Text Only Entry (pabsec) (Entered: 08/28/2019)
08/28/2019	110	ORDER granting 108 Motion to Withdraw as Counsel. Attorney Brice A. Tondre is relieved of any further representation of Plaintiff. The Clerk of Court is instructed to terminate Attorney Tondre as counsel of record, and to remove this name from the electronic certificate of mailing. Plaintiff shall continue to be represented by Attorney John L. Springer. by Magistrate Judge Kristen L. Mix on 8/28/2019. Text Only Entry(klmlcl,) (Entered: 08/28/2019)
08/29/2019	111	NOTICE of Entry of Appearance by Sean Michael McDermott on behalf of Edward John NosewiczAttorney Sean Michael McDermott added to party Edward John Nosewicz(pty:pla) (McDermott, Sean) (Entered: 08/29/2019)
09/06/2019	112	MOTION in Limine by Defendants J. Janosco, Jeffrey Janosco. (Attachments: # 1 Exhibit Exhibit A)(Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	113	Exhibits in Support of 112 MOTION in Limine by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	114	ORDER by Chief Judge Philip A. Brimmer on 9/6/2019, re: 104 the Recommendation of United States Magistrate Judge is ACCEPTED . Defendant's Renewed Motion to Strike Portions [of] Dr. Engelstad's ExpertDisclosure 100 is GRANTED . ORDERED the testimony of Dr. Mark Engelstad identified in subparagraphs (b) through (e) of Plaintiffs Expert Witness Disclosures [Docket No. 100-1] is excluded pursuant to Fed. R. Civ. P. 37(c)(1).(sphil,) (Entered: 09/06/2019)
09/06/2019	115	Proposed Jury Instructions (<i>Stipulated</i>) by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	116	Proposed Verdict Form (<i>Stipulated</i>) by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	117	Proposed Jury Instructions (<i>disputed</i>) by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	118	Proposed Verdict Form (<i>special interrogatories</i>) by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/06/2019)
09/06/2019	119	MOTION in Limine by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 09/06/2019)
09/06/2019	120	NOTICE of Proposed Jury Instructions by Plaintiff Edward John Nosewicz (Attachments: # 1 Exhibit Proposed Jury Instructions, # 2 Exhibit Proposed Jury Instructions (Second Set))(Springer, John) (Entered: 09/06/2019)

09/13/2019	121	Proposed Voir Dire by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 09/13/2019)
09/13/2019	122	Witness List by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 09/13/2019)
09/13/2019	123	Exhibit List by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 09/13/2019)
09/13/2019	124	Proposed Voir Dire by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/13/2019)
09/13/2019	125	Witness List by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/13/2019)
09/13/2019	126	Exhibit List by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/13/2019)
09/16/2019	127	NOTICE re 125 Witness List by Defendants J. Janosco, Jeffrey Janosko (Kloster, Marni) (Entered: 09/16/2019)
09/17/2019	128	TRIAL BRIEF by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 09/17/2019)
09/17/2019	129	RESPONSE to 119 MOTION in Limine filed by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 09/17/2019)
09/17/2019	130	NOTICE of Plaintiff's Estimate of Cross-Examination Time by Plaintiff Edward John Nosewicz (McDermott, Sean) (Entered: 09/17/2019)
09/18/2019	131	RESPONSE to 112 MOTION in Limine filed by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/18/2019)
09/18/2019	132	TRIAL BRIEF by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/18/2019)
09/19/2019	133	MOTION to Strike <i>One of Plaintiff's Trial Witnesses & Several Exhibits & Request for Expedited Briefing</i> by Defendants J. Janosco, Jeffrey Janosko. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Kloster, Marni) (Entered: 09/19/2019)
09/19/2019	134	ERRATA re 120 Notice (Other) <i>Proposed Jury Instructions</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 Proposed Document Plaintiff's Proposed Jury Instructions) (McDermott, Sean) (Entered: 09/19/2019)
09/20/2019	140	COURTROOM MINUTES for Trial Preparation Conference held on 9/20/2019 before Chief Judge Philip A. Brimmer. ORDERED: Defendant's Motion In Limine 112 is GRANTED IN PART AND DENIED IN PART, for reasons stated on record.Plaintiffs Motion In Limine 119 is GRANTED IN PART AND DENIED INPART, as stated on record. The parties shall provide briefing, not more than five pages, related to medical damages/economic damages on or before September 25, 2019, as discussed. Defendants Motion to Strike One of Plaintiffs Trial Witnesses & Several Exhibits & Request for Expediated Briefing 133 is GRANTED IN PART AND DENIED IN PART, as stated on record. The parties shall submit a stipulated statement of the case on or before September 25, 2019.Plaintiff shall submit an alphabetized combined list of witnesses on or beforeSeptember 25, 2019. Witnesses will be sequestered. Court Reporter: Janet Coppock. (sgrim,) (Entered: 09/26/2019)
09/24/2019	135	TRANSCRIPT of Trial Preparation Conference held on September 20, 2019 before Chief Judge Philip A. Brimmer. Pages: 1-89. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform

		the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (jcopp,) (Entered: 09/24/2019)
09/24/2019	136	STIPULATION <i>Regarding Video and Audio Exhibits for Trial</i> by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/24/2019)
09/24/2019	137	STIPULATION <i>Regarding Witnesses</i> by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/24/2019)
09/25/2019	138	BRIEF <i>Regarding Plaintiff's Medical Expenses</i> by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/25/2019)
09/25/2019	139	STATEMENT <i>Proposed (Joint) of the Case</i> by Defendants J. Janosco, Jeffrey Janosco. (Kloster, Marni) (Entered: 09/25/2019)
09/26/2019	141	NOTICE <i>of Filing</i> by Plaintiff Edward John Nosewicz (Attachments: # 1 Plaintiff's Supplemental Brief Regarding Medical Expenses)(McDermott, Sean) (Entered: 09/26/2019)
09/27/2019	142	ERRATA <i>Plaintiff's Supplemental Brief Regarding Medical Expenses</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 PLAINTIFF'S SUPPLEMENTAL BRIEF REGARDING MEDICAL EXPENSES)(McDermott, Sean) (Entered: 09/27/2019)
09/27/2019	143	Witness List <i>(Combined)</i> by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 09/27/2019)
10/01/2019	144	MOTION to Clarify re 114 Order on Motion to Strike,, Order on Report and Recommendations, by Plaintiff Edward John Nosewicz. (McDermott, Sean) (Entered: 10/01/2019)
10/02/2019	145	MINUTE ORDER. Defendant shall respond to Plaintiff's Motion for Clarification 144 on or before noon on Thursday, October 3, 2019. By Chief Judge Philip A. Brimmer on 10/2/19. Text Only Entry (pabsec) (Entered: 10/02/2019)
10/02/2019	146	RESPONSE to 144 MOTION to Clarify re 114 Order on Motion to Strike,, Order on Report and Recommendations, filed by Defendants J. Janosco, Jeffrey Janosco. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B)(Kloster, Marni) (Entered: 10/02/2019)
10/03/2019	147	MINUTE ORDER. Any objections to or comments about the attached proposed introductory jury instructions shall be filed on or before Friday, October 4, 2019 at 4:00 p.m. By Chief Judge Philip A. Brimmer on 10/3/19. (pabsec) (Entered: 10/03/2019)
10/04/2019	148	NOTICE re 147 Minute Order by Defendants J. Janosco, Jeffrey Janosco (Kloster, Marni) (Entered: 10/04/2019)
10/04/2019	149	Exhibit List <i>Amended</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit) (McDermott, Sean) (Entered: 10/04/2019)
10/07/2019	150	COURTROOM MINUTES for Jury Trial - Day 1 held on 10/7/2019 before Chief Judge Philip A. Brimmer. Court Reporter: Janet Coppock. (sgrim) Modified on 10/8/2019 to correct date filed. (sgrim) (Entered: 10/08/2019)

10/08/2019	151	COURTROOM MINUTES for Jury Trial - Day 2 held on 10/8/2019 before Chief Judge Philip A. Brimmer. Court Reporter: Janet Coppock. (sgrim) (Entered: 10/09/2019)
10/09/2019	152	COURTROOM MINUTES for Jury Trial - Day 3 completed on 10/9/2019 before Chief Judge Philip A. Brimmer. ORDERED: Defendant's oral motions for judgment as a matter of law pursuant to Rule 50 are DENIED, as stated on record. Defendant's renewed oral motions for judgment as a matter of law pursuant to Rule 50 are DENIED, as stated on record. JURY VERDICT. Court Reporter: Janet Coppock. (Attachments: # 1 Plaintiff's tendered verdict form, # 2 Defendant's tendered jury instruction and verdict form) (sgrim) (Entered: 10/10/2019)
10/09/2019	153	Jury Instructions. (sgrim) (Entered: 10/10/2019)
10/09/2019	154	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (sgrim) (Entered: 10/10/2019)
10/09/2019	155	JURY VERDICT. (sgrim) (Entered: 10/10/2019)
10/10/2019	156	ORDER. It is ORDERED that at the conclusion of the trial counsel for the parties shall retain custody of their respective exhibits and depositions until such time as all need for the exhibits and depositions has terminated and the time to appeal has expired or all appellate proceedings have been terminated plus sixty days, by Chief Judge Philip A. Brimmer on 10/10/19. Text Only Entry (sgrim) (Entered: 10/10/2019)
10/10/2019	157	FINAL JUDGMENT re: 155 Jury Verdict, by Clerk on 10/10/19. (sgrim) (Entered: 10/10/2019)
10/22/2019	158	Proposed Bill of Costs by Defendant Jeffrey Janosko. (Attachments: # 1 Affidavit, # 2 Cover Sheet and Receipts for Bill of Costs)(Poppe, Nicholas) (Entered: 10/22/2019)
11/07/2019	159	MOTION for New Trial <i>Pursuant to Fed.R.Civ.P. 59(a)(1)(A)</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3)(Springer, John) (Entered: 11/07/2019)
11/18/2019	160	Amended MOTION for New Trial <i>pursuant to Fed.R.Civ.P. 59(a)(1)(A)</i> by Plaintiff Edward John Nosewicz. (Attachments: # 1 Exhibit Exhibit 1, # 2 Exhibit Exhibit 2, # 3 Exhibit Exhibit 3, # 4 Appendix NOTICE, # 5 Exhibit Exhibit 1 (Notice), # 6 Exhibit Exhibit 2 (Notice))(Springer, John) (Entered: 11/18/2019)
11/21/2019	161	RESPONSE to 159 MOTION for New Trial <i>Pursuant to Fed.R.Civ.P. 59(a)(1)(A)</i> filed by Defendants J. Janosko, Jeffrey Janosko. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C)(Kloster, Marni) (Entered: 11/21/2019)
12/05/2019	162	REPLY to Response to 160 Amended MOTION for New Trial <i>pursuant to Fed.R.Civ.P. 59(a)(1)(A)</i> , 159 MOTION for New Trial <i>Pursuant to Fed.R.Civ.P. 59(a)(1)(A)</i> filed by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 12/05/2019)
12/10/2019	163	MOTION to Continue <i>Conference of December 11, 2019</i> by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 12/10/2019)
12/10/2019	164	NOTICE by Clerk Regarding Bill of Costs Hearing re: 158 Proposed Bill of Costs and 163 MOTION to Continue. Counsel has filed 158 , the Unopposed Motion to Continue the Bill of Costs hearing; the hearing is currently scheduled for Dec. 11, 2019 at 9:30 a.m., and both parties have appeared to agree to continue the matter to now be held on Jan. 29, 2019 before the Clerk. The Clerk is happy to accommodate the parties' request, and the hearing is RESET to Jan. 29, 2019 at 9:30 a.m. before the Clerk on the 1st floor of the Arraj Courthouse. The filing of a motion requiring court action, rather than simply reaching an informal agreement with the Clerk's input may have confused the parties, who must now await court action; that is unnecessary, and the parties can be assured that

		the hearing is now reset for Jan. 29. Text Only Entry by the Clerk on Dec. 10, 2019. (ebutl) (Entered: 12/10/2019)
12/10/2019	165	MINUTE ORDER by Chief Judge Philip A. Brimmer on 12/10/2019, re: 163 MOTION to Continue Conference of December 11, 2019 is DENIED as moot. Text Only Entry. (sphil,) (Entered: 12/11/2019)
12/13/2019	166	MOTION for Sanctions <i>under Rule 11</i> by Defendant Jeffrey Janosko. (Kloster, Marni) (Entered: 12/13/2019)
01/29/2020	167	Costs Taxed by Clerk in the amount of \$10,099.84 against Plaintiff Edward John Nosewicz and in favor of Defendant Jeffrey Janosko. Hearing held before the Clerk Jan. 29, 2020, rescheduled from Nov. 5, 2019. Counsel for both parties appeared in person; counsel conferred at the beginning of the hearing and reached multiple agreements as to individual items, the Clerk determined the remaining items, as documented on the Taxation of Costs form and attachments. (ebutl) (Entered: 01/29/2020)
02/06/2020	168	Unopposed MOTION for Costs <i>FOR CLERK TO HOLD CERTIFIED FUNDS AS SECURITY FOR TAXED COSTS</i> by Plaintiff Edward John Nosewicz. (Springer, John) (Entered: 02/06/2020)
02/06/2020	169	MEMORANDUM regarding 168 Unopposed MOTION for Costs <i>FOR CLERK TO HOLD CERTIFIED FUNDS AS SECURITY FOR TAXED COSTS</i> filed by Edward John Nosewicz. Motions referred to Magistrate Judge Kristen L. Mix, by Chief Judge Philip A. Brimmer on 2/6/2020. Text Only Entry (pabsec2,) (Entered: 02/06/2020)
02/10/2020	170	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 2/10/20 GRANTING 168 Plaintiff's Unopposed Motion for Clerk to Hold Certified Funds as Security for Taxed Costs. Execution of or any proceedings to enforce the judgment for costs are STAYED pending a ruling on the motion for new trial. IT IS FURTHER ORDERED that Plaintiff shall deposit certified funds in the amount of \$10,099.84 with the Clerk of Court, which the Clerk shall hold as security for the costs taxed pending a disposition of Plaintiff's motion for new trial [#160].(nmarb,) (Entered: 02/10/2020)
02/11/2020	171	PAYMENT RECEIVED from Edward John Nosewicz in the amount of \$ 10,099.84; Receipt Number cox093967 pursuant to 170 Minute Order. (sphil,) (Entered: 02/11/2020)
07/17/2020	172	ORDER by Chief Judge Philip A. Brimmer on 7/17/2020, re: 159 Plaintiffs Motion for a New Trial Pursuant to Fed. R. Civ. P. 59(a)(1)(A) is DENIED AS MOOT ; 160 Plaintiff's Amended Motion for a New Trial Pursuant to Fed. R.Civ. P. 59(a)(1)(A)is DENIED ; 166 Defendant's Rule 11 Motion is DENIED .(sphil,) (Entered: 07/17/2020)
08/14/2020	173	NOTICE OF APPEAL as to 157 Clerk's Judgment, 155 Jury Verdict, 172 Order on Motion for New Trial,,, Order on Motion for Sanctions, 154 Restricted Document - Level 3 by Plaintiff Edward John Nosewicz (Filing fee \$ 505, Receipt Number 1082-7438041) (Springer, John) (Entered: 08/14/2020)
08/17/2020	175	TRANSCRIPT ORDER FORM by Plaintiff Edward John Nosewicz. re 173 Notice of Appeal,. (sphil,) (Entered: 08/18/2020)
08/18/2020	174	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 173 Notice of Appeal, filed by Edward John Nosewicz to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Preliminary Record, # 2 Docket Sheet) (sphil,) (Entered: 08/18/2020)
08/18/2020	176	USCA Case Number 20-1287 for 173 Notice of Appeal, filed by Edward John Nosewicz. (sphil,) (Entered: 08/18/2020)

08/24/2020	177	REPORTER TRANSCRIPT ORDER FORM filed by Janet Coppock re: 173 Notice of Appeal. Transcript due by 9/24/2020. (nrich) (Entered: 08/24/2020)
09/16/2020	178	TRANSCRIPT of Excerpt of Trial To Jury, Vol. 1 held on October 7, 2019 before Chief Judge Philip A. Brimmer. Pages: 1-136. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (jcopp,) (Entered: 09/16/2020)
09/16/2020	179	TRANSCRIPT of Excerpt of Trial to Jury, Vol. 2 held on October 8, 2019 before Chief Judge Philip A. Brimmer. Pages: 137-335. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (jcopp,) (Entered: 09/16/2020)
09/16/2020	180	TRANSCRIPT of Excerpt of Trial to Jury, Vol. 3 held on October 9, 2019 before Chief Judge Philip A. Brimmer. Pages: 336-407. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (jcopp,) (Entered: 09/16/2020)
09/25/2020	181	LETTER TO USCA and all counsel certifying the record is complete as to 173 Notice of Appeal, filed by Edward John Nosewicz. A transcript order form was filed stating that the necessary transcript is already on file. (Appeal No. 20-01287) Text Only Entry (sphil,) (Entered: 09/25/2020)
05/28/2021	182	USCA Order and Judgment as to 173 Notice of Appeal, filed by Edward John Nosewicz : Affirmed. (USCA Case No. 20-1287) (This document is not the Mandate) (athom,) (Entered: 05/28/2021)
06/21/2021	183	ORDER of USCA as to 173 Notice of Appeal, filed by Edward John Nosewicz. (USCA Case No. 20-1287). Appellants petition for rehearing is DENIED. (sphil,) (Entered: 06/22/2021)
06/30/2021	184	MANDATE of USCA as to 182 USCA Order/Opinion/Judgment, 173 Notice of Appeal, filed by Edward John Nosewicz : (USCA Case No. 20-1287) (sphil,) (Entered: 07/01/2021)

12/10/2021	185	Unopposed MOTION for Release of Funds by Defendants J. Janosco, Jeffrey Janosko. (Attachments: # 1 Proposed Document Regarding Distribution of Funds)(Kloster, Marni) (Entered: 12/10/2021)
12/10/2021	186	RESTRICTED DOCUMENT - Level 2: by Defendants J. Janosco, Jeffrey Janosko.. (Kloster, Marni) (Entered: 12/10/2021)
12/10/2021	187	Unopposed MOTION for Leave to Restrict by Defendants J. Janosco, Jeffrey Janosko. (Kloster, Marni) (Entered: 12/10/2021)
12/10/2021	188	MEMORANDUM regarding 187 Unopposed MOTION for Leave to Restrict filed by J. Janosco, Jeffrey Janosko. Motion referred to Magistrate Judge Kristen L. Mix, by Chief Judge Philip A. Brimmer on 12/10/2021. Text Only Entry (pabsec,) (Entered: 12/10/2021)
12/14/2021	189	MINUTE ORDER by Chief Judge Philip A. Brimmer on 12/14/2021, re: 185 Unopposed Motion for Disbursement From Court Registry Fund is GRANTED. ORDERED that the Clerk of Court shall disburse \$10,099.84 from the Court registry, less the registry fee assessment and plus interest accrued, to defendant by check made payable to Adams County, Colorado and mailed to 4430 South Adams County Parkway, Suite C5000B, Brighton, CO 80601. (trvo,) (Entered: 12/14/2021)
01/04/2022	190	MINUTE ORDER by Magistrate Judge Kristen L. Mix on January 4, 2022. IT IS HEREBY ORDERED that the Motion 187 is GRANTED. IT IS FURTHER ORDERED that the Clerk of the Court is directed to maintain Exhibit A 186 to Defendant's Unopposed Motion for Disbursement from Court Registry Fund UNDER RESTRICTION at LEVEL 2.(csarr,) (Entered: 01/05/2022)

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